

23STCV27944 23STCV27944

County: los-angeles

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Department: 310

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Case Number: 23STCV27944 Hearing Date: August 21, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 21, 2026

Case Name: Heldman v. Liberty Utilities (Park Water) Corp., et al.

Case No.: 23STCV27944

Matter: Motions to Compel Further Responses (4x)

This is an employment action. On November 14, 2023, Plaintiff Franklin Heldman filed the operative Complaint against Defendants Liberty Utilities (Park Water) Corp., Liberty Utilities Services Corp., Liberty Utilities (Apple Valley Ranchos Water) Corp., and Liberty Utilities for (1) whistleblower retaliation, (2) age discrimination, (3) failure to prevent discrimination, (4) wrongful termination, and (5) breach of implied in fact contract.

Motion 1: Special Interrogatories

Plaintiff's Motion to Compel Defendant Liberty Utilities (Apple Valley Ranchos Water) Corp. to Provide Further Responses to Special Interrogatories, Set One (Nos. 2–5) is GRANTED.

Nos. 2–5 seek the identities, titles, reasons for coaching, and decision-makers for employees coached by Laura Moriarty and Neil Dempster over the past ten years. Because Defendant put Plaintiff's executive coaching at issue by characterizing it as disciplinary rather than developmental, comparator evidence across these coaches is directly relevant to proving disparate treatment and pretext under CCP § 2017.010. Defendant's boilerplate overbreadth, burden, and privacy objections are overruled as unsupported.

Defendant is ordered to serve verified, code-compliant further responses without objections and disclose all non-privileged information within 20 days.

Motion 2: Special Interrogatories

Plaintiff's Motion to Compel Defendant Liberty Utilities (Park Water) Corp. to Provide Further Responses to Special Interrogatories, Set Two (Nos. 2–9) is GRANTED.

Nos. 2–9 target the broad "LIBERTY UTILITIES" entity definition regarding employees coached by Moriarty or Dempster. Cross-entity comparative coaching records are discoverable to test whether executive coaching was systematically treated as routine leadership development rather than formal progressive discipline across the organizational structure. Defendant's vague/ambiguous and burden objections regarding the corporate scope are overruled.

Defendant is ordered to serve verified, code-compliant further responses without objections within 20 days.

Motion 3: Special Interrogatories

Plaintiff's Motion to Compel Defendant Liberty Utilities (Park Water) Corp. to Provide Further Responses to Special Interrogatories, Set Three (Nos. 18–29) is GRANTED. Further responses within 20 days.

Witness Contact Info (Nos. 18–21): Seeking last known contact details for key percipient witnesses (Petos, Paravalos, Johnston, and related personnel) is routine discovery under *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242. Canadian residency does not shield percipient witness contact details from disclosure.

Comparator & Departing Employee Compensation (Nos. 22–25): Compensation rates for key departed employees (Diaz, Vasquez, Ommen, Garcia) are directly relevant to rebutting Defendant's defense that Plaintiff caused their departures, allowing Plaintiff to show they left for market compensation. Third-party privacy concerns are outweighed by relevance and adequately safeguarded by the protective order.

Enterprise Coaching Data (Nos. 26–29): Further specific inquiries regarding corporate coaching policies and comparator disciplinary histories across the enterprise are relevant to establishing pretext.

Motion 4: Requests for Production

On July 27, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Production of Documents (Set Three), specifically seeking further responses across RFP Nos. 103 through 142.

Good cause exists under Code of Civil Procedure section 2031.310 for RFP No. 103 (complete text message threads for LIBERTY2315–LIBERTY2398) and RFP Nos. 107–111 (Adam Ambrose records), as these documents are directly relevant to Plaintiff's claims of pretext (*Moore v. Regents of Univ. of Cal.* (2016) 248 Cal.App.4th 216, 235–236), and Plaintiff's need outweighs third-party privacy concerns (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 37).

The Motion is denied as to RFPs Nos. 112–125 as to coaching matters, which are overbroad and unduly intrusive to third-party privacy.

The Motion is granted in part as to RFP Nos. 126-128 (internal complaints and investigations). For RFP Nos. 127-128, the temporal limitation will be five years before Plaintiff's termination.

The Motion is granted as to RFP Nos. 129-132 (communications).

The Motion is denied as to RFP No. 133, which is overbroad.

The Motion is granted as to RFP nos. 134-142, which relate to promotion materials, complaints, investigations, and separation communications.

Further responses within 20 days.

No sanctions.

Moving party to give notice.